



CHAPTER 73

An Act to provide for the reconstitution of the Commissioners of Crown Lands under the name of the Crown Estate Commissioners; to transfer to the Lord Privy Seal and the Secretary of State certain powers of the Treasury under section thirty-two of the Crown Lands Act, 1851, in its application to the said Commissioners, and to make new provision as to the annual report of the said Commissioners; and for purposes connected with the matters aforesaid.

[5th November, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from the appointed day the body corporate constituted under the Crown Lands Acts, 1829 to 1943, as the Commissioners of Crown Lands shall be reconstituted in accordance with the following provisions of this Act and shall be known as the Crown Estate Commissioners (in this Act referred to as "the Commissioners"); and the possessions and land revenues of the Crown under the management of that body, and all other property, rights and interests of the Crown under the management of that body, shall as from the appointed day be known, and are hereafter referred to in this Act, as the Crown Estate.

(2) The Commissioners shall, as from the appointed day, consist of persons appointed under this Act by Her Majesty to hold office as Crown Estate Commissioners; and accordingly—

- (a) section one of the Crown Lands Act, 1906, and the Crown Lands Act, 1943 (under which the Minister of Agriculture, Fisheries and Food and the Secretary of State for Scotland respectively are, by virtue of their offices, Commissioners of Crown Lands) shall cease to have effect as from the appointed day; and

(b) the appointment of any person holding office immediately before the appointed day as a Commissioner of Crown Lands, otherwise than by virtue of the enactments mentioned in the preceding paragraph, shall cease to have effect as from that day, but without prejudice to his being eligible for appointment as a Crown Estate Commissioner under this Act.

(3) The Commissioners shall consist of such number of persons, not exceeding eight, as Her Majesty may from time to time determine; and, of the persons for the time being appointed to hold office as Crown Estate Commissioners, one shall be appointed as First Crown Estate Commissioner and shall be the chairman of the Commissioners, and another may, if Her Majesty thinks fit, be appointed as Second Crown Estate Commissioner and, if so appointed, shall be the deputy chairman of the Commissioners.

(4) The appointment of any person to hold office as a Crown Estate Commissioner, whether as First or Second Crown Estate Commissioner or otherwise, shall be by warrant under the sign manual.

(5) Every person appointed to hold office as a Crown Estate Commissioner, whether as First or Second Crown Estate Commissioner or otherwise, shall hold and vacate his office in accordance with the terms of the warrant under which he is appointed; and any person who vacates such an office shall be eligible for re-appointment.

(6) The quorum of the Commissioners shall be such number as the Commissioners may from time to time determine; and, subject to the provisions of the Crown Lands Acts, 1829 to 1936, and of this Act, the Commissioners shall have power to regulate their own procedure.

(7) In accordance with subsection (1) of this section, references in any enactment or other document to the Commissioners of Crown Lands, or to one of those Commissioners, shall, in relation to any time on or after the appointed day, be construed as references to the Commissioners or to a Crown Estate Commissioner, as the case may be.

(8) There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this section in the sums payable out of moneys so provided under section four of the Crown Lands Act, 1851, (which relates to the salaries of the Commissioners of Crown Lands and of the officers, clerks and messengers in their office).

14 & 15 Vict.
c. 42.

Further
provisions as
to Crown
Estate Com-
missioners.

2.—(1) Section thirty-two of the Crown Lands Act, 1851 (under which the Commissioners of Crown Lands are required to comply with orders, instructions and directions given to them by the Treasury), shall have effect as from the appointed day,

in relation to the making or giving of orders, instructions and directions to the Commissioners with respect to the execution and discharge of their duties, as if the reference in that section to the Treasury were a reference to the Minister.

(2) The Minister shall consult the Commissioners before giving to them any order, instruction or direction under the said section thirty-two.

(3) As soon as may be after the thirty-first day of March in each year, the Commissioners shall make to Her Majesty a report on the performance of their functions in the period of twelve months ending on that day, and shall lay a copy of the report before each House of Parliament.

(4) A report of the Commissioners for any period of twelve months shall set out any orders, instructions or directions given to the Commissioners by the Minister during that period, except any order, instruction or direction in the case of which the Minister has notified to the Commissioners his opinion that it should be omitted in the interests of national security.

3.—(1) This Act may be cited as the Crown Estate Act, 1956. Short title,
repeals,
interpretation
and extent.

(2) As from the appointed day—

(a) the enactments specified in Part I of the Schedule to this Act, and

(b) the enactments specified in Part II of that Schedule in so far as they relate to the Commissioners of Crown Lands,

are hereby repealed to the extent specified in the third column of that Schedule.

(3) In this Act “the appointed day” means such day as Her Majesty may by Order in Council appoint, and “the Minister”—

(a) in relation to any matter relating exclusively to Scotland, means the Secretary of State;

(b) in relation to any matter relating to other parts of the United Kingdom, but not to Scotland, means the Lord Privy Seal; and

(c) in relation to any matter not falling within either of the preceding paragraphs, means the Lord Privy Seal and the Secretary of State acting jointly.

(4) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

(5) It is hereby declared that this Act extends to Northern Ireland.

Section 3.

SCHEDULE

REPEALS

PART I

Enactments repealed

Session and Chapter	Short Title	Extent of Repeal
6 Edw. 7. c. 28.	The Crown Lands Act, 1906.	Section one.
1 Edw. 8 & 1 Geo. 6. c. 35.	The Statutory Salaries Act, 1937.	In subsection (1) of section two, the words "(other than the Minister of Agriculture and Fisheries)".
6 & 7 Geo. 6. c. 7.	The Crown Lands Act, 1943.	The whole Act.

PART II

*Enactments repealed in relation to
Commissioners of Crown Lands*

Session and Chapter	Short Title	Extent of Repeal
10 Geo. 4. c. 50.	The Crown Lands Act, 1829.	Section one hundred and twenty-five.
11 & 12 Vict. c. 102.	The Crown Lands Act, 1848.	Section eight.
14 & 15 Vict. c. 42.	The Crown Lands Act, 1851.	In section one, the words from "and it shall be lawful" to the end of the section.

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